

24NWCV02040 24NWCV02040

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PADILLA v. MAMBO GRILL RESTAURANT, INC., ET
AL.

CASE NO.: 24NWCV02040

HEARING: Thursday, July 16, 2026, at 9:30 AM

Defendant MAMBO GRILL
RESTAURANT, INC.'s Demurrer to Plaintiff KENIA PEREZ PADILLA's First Amended
Complaint is SUSTAINED with 30 days leave to amend.

Moving Party to give notice.

Background

On July 2, 2024, Plaintiff KENIA PEREZ PADILLA ("Plaintiff")
filed this action against Defendants MAMBO GRILL RESTAURANT, INC. ("Defendant"
or "Restaurant"); ERIK JEHOVANNY DE LA TRINIDAD; and DOES 1 through 50,
inclusive.

On January 9, 2026, Plaintiff filed the operative First
Amended Complaint ("FAC").

Plaintiff alleges that, "At approximately 1:20 a.m. on July
24, 2022, the music at PREMISES stopped, the lights were turned on, and the
guests were advised to finish their drinks and vacate PREMISES. At the time

this occurred, there were approximately 140 to 150 people inside of PREMISES, but only three (3) visible security guards. Plaintiff vacated PREMISES as instructed and waited with several friends on the sidewalk directly outside of PREMISES for the rest of their party to exit. The party was approximately 10 to 20 feet away from the closest security guard, who was, at that time, ushering patrons out of PREMISES. While the Plaintiff was waiting for the rest of her party, Defendant TRINIDAD approached Plaintiff's party and without warning attempted to strike a male individual. Defendant TRINIDAD did not, however, make physical contact with his target, and instead inadvertently hit Plaintiff in the back of the head. This caused Plaintiff to fall onto the pavement and hit her head on the concrete, knocking Plaintiff unconscious and causing Plaintiff serious injuries." (FAC ¶ 8.)

Plaintiff's FAC alleges the following causes of action:

(1) Battery

against Defendant Trinidad;

(2) Intentional

Infliction of Emotional Distress against Defendant Trinidad;

(3) Negligence

against Defendant Restaurant; and

(4) Premises

Liability against Defendant Restaurant

On March 12, 2026, Plaintiff dismissed Defendant Trinidad without prejudice.

On February 11, 2026, Restaurant filed the instant Demurrer.

Third and Fourth Causes of Action– Negligence and Premises Liability

California law requires landowners to maintain land in their possession and control in a reasonably safe condition. (Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 674 (Ann M.).) The liability of landowners for injuries to people on their property is governed by general negligence principles. (Pineda v. Ennabe (1998) 61 Cal.App.4th 1403, 1407 (Pineda).) A cause of action for negligence requires (1) a legal duty owed to the plaintiff to use due care, (2) breach of that duty, (3) causation, and (4) damage to the plaintiff. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.) The existence of a legal duty is a question for the court to determine, and "foreseeability is a 'crucial factor' in determining the existence and scope of a legal duty." (Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 237, citing Ann M., supra, 6 Cal.4th

at pp. 674, 676 (Delgado).)

"[A] high degree of foreseeability is required in order to find that the scope of a landlord's duty of care includes the hiring of security guards. . . . [T]he requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner's premises. To hold otherwise would be to impose an unfair burden upon landlords and, in effect, would force landlords to become the insurers of public safety, contrary to well established policy in this state." (Ann M., supra, 6 Cal.4th at p. 679, footnote omitted.) "Heightened foreseeability is satisfied by a showing of prior similar criminal incidents (or other indications of a reasonably foreseeable risk of violent criminal assaults in that location) and does not require a showing of prior nearly identical criminal incidents. (Delgado, supra, 36 Cal.4th at p. 245.)

Here, Plaintiff alleges that, "Plaintiff later discovered that multiple previous incidents had occurred at PREMISES over the past four years at or around the same time of day as the incident at issue." (FAC ¶ 10.) Plaintiffs plead no other facts regarding these vague "previous incidents" and does not allege "prior similar incidents of violent crime on the landowner's premise." (Ann M., supra, 6 Cal.4th at p. 679.)

However, Defendant may owe a duty to respond to events unfolding in its presence by undertaking reasonable and minimally burdensome measures. (Delgado, supra, 36 Cal.4th at p. 245.) In Delgado, evidence showed Defendant's guard was aware of facts that lead him to conclude a fight was likely to occur. (Ibid.) Here, Plaintiff alleges Defendant Trinidad acted "without warning" (FAC ¶ 8.) and there are no facts or allegations to suggest Defendant's security guards were aware Defendant Trinidad would hit Plaintiff.

The Court finds that Plaintiff did establish Defendant owed a duty of care and thus, Defendant's Demurrer is SUSTAINED.

The Court notes Defendant's argument that Plaintiff's Negligence action is duplicative of her Premises Liability action. However, CCP § 430.10, which sets forth the grounds for demurrer, does not provide that duplication of claims is the basis for demurring. Courts have regularly recognized that plaintiffs may allege different causes of action, even if duplicative. (See, e.g., Charnay v. Cobert (2006) 145 Cal.App.4th 170, 186; Hydro-Mill Co., Inc. v. Hayward, Tilton & Rolapp Ins. Associates, Inc. (2004) 115 Cal.App.4th 1145, 1153.)

Leave to Amend

Leave to amend must be allowed where there is a reasonable

possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (Lewis v. Youtube, LLC (2015) 244 Cal.App.4th 118, 226.)

The Court grants Plaintiff leave to amend. Plaintiff can add facts to demonstrate prior similar incidents of violent crime on the Subject Premises.

Conclusion

Defendant's Demurrer is SUSTAINED with 30 days leave to amend.